



## CHAPTER 59.

An Act to declare the meaning of references in Acts of Parliament and subordinate legislation to the laying of instruments or other documents before Parliament or before either House of Parliament, and the effect during a vacancy in the office of the Lord Chancellor or of the Speaker of the House of Commons of the requirement in section four of the Statutory Instruments Act, 1946, to send notification forthwith to each of them of an instrument's being made so as to operate before it has been laid before Parliament.

[30th July 1948.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) For the removal of doubt it is hereby declared that a reference in any Act of Parliament or subordinate legislation, whether passed or made before or after the passing of this Act, to the laying of any instrument, report, account or other document before either House of Parliament is, unless the contrary intention appears, to be construed as a reference to the taking, during the existence of a Parliament, of such action as is directed by virtue of any Standing Order, Sessional Order or other direction of that House for the time being in force to constitute the laying of that document before that House, or as is accepted by virtue of the practice of that House for the time being as constituting such laying, notwithstanding that the action so directed or accepted consists in part or wholly in action capable of being taken otherwise than at or during the time of a sitting of that House ; and that a reference in any such Act or subordinate

Meaning of references to laying before Parliament.

legislation to the laying of any instrument, report, account or other document before Parliament is, unless the contrary intention appears, to be construed accordingly as a reference (construed in accordance with the preceding declaration) to the laying of the document before each House of Parliament.

9 & 10 Geo. 6.  
c. 36. (2) It is hereby further declared that nothing in section four of the Statutory Instruments Act, 1946, is to be taken as indicating an intention that any reference in that section to the laying of copies of certain statutory instruments as therein mentioned is to be construed otherwise than in accordance with the preceding declaration.

Notification  
under 9 & 10  
Geo. 6. c. 36,  
s. 4. during  
vacancy of  
office of Lord  
Chancellor or  
of Speaker.

2. It is hereby declared that the requirement imposed by subsection (1) of section four of the Statutory Instruments Act, 1946, to send notification forthwith to the Lord Chancellor and to the Speaker of the House of Commons where a statutory instrument required to be laid before Parliament has been made so as to come into operation before it has been so laid, is to be treated as having been complied with, in a case in which notification forthwith is impossible by reason of a vacancy for the time being in the office of the Lord Chancellor or of the Speaker, whether occurring by death, resignation, dissolution of Parliament or otherwise, if the notification is sent to him immediately after the vacancy is filled.

Short title.

3. This Act may be cited as the Laying of Documents before Parliament (Interpretation) Act, 1948.

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